

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

VITALY GARAZ,

Plaintiff(s),

--against--

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER STEVEN TATAR,

Defendant(s).

To The Above Named Defendant(s)

INDEX No.

Plaintiff(s) designate

Kings County

County as the place of trial

The basis of the venue is

Place of Occurrence

SUMMONS

Place of Accident

Brooklyn, New York

County of

Kings

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded herein.

Dated, August 7, 2019

Defendant(s) address: All Defendants at the following address

THE CITY OF NEW YORK 100 Church Street, New York, New York 10007

NYPD: 100 Centre Street, New York, NY 10007;

Efrom J. Gross, Esq.
Attorney for plaintiff(s)
Office and Post Office Address
713 Wildwood Road
West Hempstead, NY 11552
Tel.: (516) 483-4580
(718) 787-0304

Filed with the Kings County Clerk on

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

VITALY GARAZ,

Plaintiff(s),

X **VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER STEVEN TATAR,

Defendant(s).

X
Plaintiff, complaining of the defendants, by his attorney, EFROM J. GROSS,
respectfully states and alleges, upon information and belief:**AS AND FOR A FIRST CAUSE OF ACTION:**

1. At all times herein mentioned, defendant, THE CITY OF NEW YORK, was an entity organized and existing under the Laws of the State of New York.
2. At all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was an entity organized and existing under the Laws of the State of New York, and was a subdivision of the defendant, THE CITY OF NEW YORK.
3. Prior hereto, on March 15, 2019, a Notice of Claim was duly served upon the defendant, THE CITY OF NEW YORK, and more than 30 days have elapsed, and there have been no adjustments.
4. Defendant, THE CITY OF NEW YORK, held its statutory 50-h hearing on July 26, 2019.
5. This action has been commenced within one year and ninety days of the date of accident.
6. That on or about December 17, 2018, plaintiff, VITAKY GARAZ, was arrested

by the defendant, officer STEVEN TATAR.

7. The negligence of THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, by its agents, employees and/or servants was in arresting and detaining the claimant with no probable cause, handcuffing him, failing to disclose his legal rights and defense, failing to read his Miranda rights, as well as other acts of negligence and recklessness.

8. That as result of the negligence and carelessness of the defendants herein, plaintiff was caused to and did sustain severe emotional distress emotional trauma, emotional injury and psychological injuries.

9. That the foregoing was caused without any negligence on the part of plaintiff contributing thereto.

10. That as a result of the foregoing, plaintiff, VITALY GARAZ, has been damaged in an amount sought that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION:

11. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "1" through "10" inclusive, of this complaint, with the same force and effect as though more fully set forth at length herein.

12. That at all times hereinafter mentioned, defendant, STEVEN TATAR, was a police officer employed by the defendant, NEW YORK CITY POLICE DEPARTMENT.

13. That at all times hereinafter mentioned, defendants, NEW YORK CITY POLICE DEPARTMENT and Officer STEVEN TATAR, were grossly reckless in

arresting and detaining the plaintiff, in handcuffing him, in failing to present any evidence allowing the defendant to detain the plaintiff, in intentionally maliciously prosecuting and confining and imprisoning the plaintiff, as well as other acts of negligence and recklessness.

14. That as result of the recklessness of the defendants herein, Plaintiff sustained severe emotional distress emotional trauma, emotional injury and psychological injuries.

15. That by reason of the foregoing, plaintiff was severely and permanently damaged.

**AS AND FOR THE THIRD CAUSE OF ACTION ON BEHALF
OF VITALY GARAZ FOR PUNITIVE DAMAGES.**

16. That, plaintiff, VITALY GARAZ, repeats, reiterates and realleges each and every allegation of the complaint set forth in paragraphs "1" through "10" and "11" through "15" with the same force and affects as if more fully set at length, herein.

16. That as a result of the foregoing, plaintiff, VITALY GARAZ, seeks punitive damages from the defendant(s) in an amount sought that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, VITALY GARAZ, demands judgment against the defendants on the First, Second and Third Causes of Action in the amount sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; together with the costs and disbursements of this action.

Dated: West Hempstead, New York
August 7, 2019

Yours, etc.,
EFROM J. GROSS, ESQ.
713 Wildwood Road
West Hempstead, New York 11552
Tel.: (516) 508-1233

ATTORNEY'S AFFIRMATION

EFROM GROSS being duly sworn, deposes and says:

That deponent is an attorney and affirms the following to be true under the penalties provided by Law. I am the attorney for plaintiff(s); and have read the foregoing COMPLAINT and know the contents thereof; that the same is true to my knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe to be true; that the reason that this verification is made by affirmant instead of plaintiff(s), as plaintiff(s) is not within the County of Nassau where your affirmant's office is located.

Affirmant further says that the grounds of his belief as to all matters in the said COMPLAINT are based upon deponent's general investigation of the facts herein.

Dated: West Hempstead, New York
August 7, 2019



EFROM J. GROSS, ESQ.

Index No. Year

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COUNTY OF KINGS

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Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER STEVEN TATAR,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

EFROM J. GROSS, ESQ.

Attorney for Plaintiff(s)

Office and Post Office Address, Telephone

713 Wildwood Road

West Hempstead, New York 11552

Tel.: (516) 483-4580

TO:

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for

PLEASE TAKE NOTICE

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of an _____ entered in the office of the Clerk
Notice of of the within named Court on

Entry

☐ that an Order of which the within is a true copy will be presented for settlement to the
Notice of Hon. One of the judges of the within named Court, at
Settlement Brooklyn, New York on 20 , at M.

Dated: West Hempstead, New York

Yours, etc.

EFROM J. GROSS, ESQ.

Attorney for Plaintiff(s)

Office and Post Office Address

713 Wildwood Road

West Hempstead, New York 11552